

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
DAMASO REYES,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. WILBERT HERNANDEZ,
UNDERCOVER POLICE OFFICERS #1 and #2, names
knowable only by Defendants, and OFFICER[S] JOHN
AND JAMES DOE, names being fictitious and meant to
designate additional offending officers presently
unknowable by Plaintiff,

The basis of venue is:
CPLR 504 (3)

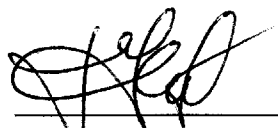
Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

January 27, 2018


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Wilbert Hernandez, Shield No. 4925 and Undercover Police Officers # 1 and #2
NARCBX, 1 Police Plaza, NY NY 10038 - Room 1310

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
DAMASO REYES,

Plaintiff,

-against-

Index No.:

VERIFIED COMPLAINT

CITY OF NEW YORK, P.O. WILBERT HERNANDEZ,
UNDERCOVER POLICE OFFICERS #1 and #2, names
knowable only by Defendants, and OFFICER[S] JOHN
AND JAMES DOE, names being fictitious and meant to
designate additional offending officers presently
unknowable by Plaintiff,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF DAMASO REYES UNDER 42 U.S.C § 1983

1. At the time of the commencement of this action, Plaintiff DAMASO REYES was

and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about November 5, 2016, P.O. WILBERT HERNANDEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about November 5, 2016, at approximately 4:00 P.M., P.O. WILBERT HERNANDEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about November 5, 2016, UNDERCOVER POLICE OFFICERS #1 and #2, whose names are presently unknowable by Plaintiff but known and within the exclusive knowledge of Defendants by virtue of their involvement with the events described herein, were employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about November 5, 2016, at approximately 4:00 P.M., UNDERCOVER POLICE OFFICERS #1 and #2 were working and acting within the scope of their employment as a Police Officers, and under the color of law.

9. That on and about November 5, 2016, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about November 5, 2016 at approximately 4:00 P.M., OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiff but known and within the exclusive knowledge of Defendants by virtue of their involvement with the events described herein, were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about November 5, 2016 at approximately 4:00 P.M., commencing at or near the southwest corner of Prospect Avenue and Garden Street and continuing at or near 761 East 182nd Street, Bronx, New York, the plaintiff DAMASO REYES was improperly arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine DAMASO REYES.

12. At the time and place aforesaid, at or near 761 East 182nd Street, Bronx NY, plaintiff DAMASO REYES was lawfully present and purchased a food item at the grocery store located thereat, after having spoken to a person who was to provide repair services for Plaintiff's vehicle, at or near the southwest corner of Prospect Avenue and Garden Street, Bronx NY.

13. That at or near 761 East 182nd Street, Bronx NY officers entered the grocery store that Plaintiff was in and demanded and obtained the currency that Plaintiff has just provided to the store clerk in order to purchase the food item.
14. Plaintiff was then detained and removed from the store, and searched.
15. Although no contraband of any type was recovered from the Plaintiff, he was arrested and placed in handcuffs.
16. The handcuffs placed upon plaintiff were extremely tight, causing pain and discomfort to plaintiff, and despite Plaintiff's complaints, Defendants refused to address or remedy Plaintiff's complaint of pain and discomfort.
17. Plaintiff DAMASO REYES was then transported to the 48th Precinct, 450 Cross Bronx Expressway, Bronx New York, where he was placed in a prison cell for a lengthy period of time, and only removed from the prison cell to be fingerprinted, photographed and interrogated, whereupon he was threatened with continued detention and prosecution unless he complied with his interrogators request to become an informant, which Plaintiff refused to do.
18. Plaintiff was thereafter transported while shackled, to Bronx County Central Booking, whereupon he was again searched and placed in numerous prison cells for lengthy periods of time until he was finally arraigned before a Judge.

19. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification or without other privilege.
20. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact and without being otherwise privileged, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock, emotional distress and physical consequences.
21. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
22. That the defendants P.O. WILBERT HERNANDEZ, UNDERCOVER POLICE OFFICERS #1 and #2 and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby initiating and causing him to suffer an unjust prosecution initiated without probable cause.

23. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

24. That all criminal charges brought against plaintiff, which were brought under docket number 2016BX048573 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of November 5, 2016, were dismissed by Hon. Marsha Michael, a Judge of said Court, on May 10, 2017.

25. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution of DAMASO REYES.

26. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately one hundred eighty six days.

27. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable

basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and to subjugate minority population without reprimand to the offending officers.

28. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, , and testify falsely so often, omitting such facts or fabricating evidence under pretext.

29. That the CITY OF NEW YORK, and specifically herein, officers of the 48th and other Bronx Precincts, allowed, condoned, permitted and caused a policy and procedure of routinely engage in the use of practices such as illegal, unlawful coercion of persons known to be innocent in an attempt to gain said persons as confidential informants in exchange for the dropping of false charges against said persons.

30. That such conduct is considered routine by the offending officers, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigations to deter actions like those complained of herein.

31. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several

witnesses that officers were expected to make certain arrest goals. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority men without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist as to each arrested individual.

32. Furthermore patterns of the NYPD and their officers alleging persons were involved in the sale of narcotics when the arrested persons were not, in fact, in any way involved in the sales of narcotics, and there was no probable cause to arrest said persons has occurred to such individuals, and some of whom were then threatened with continued detention and wrongful prosecutions unless they acceded to Defendants demands to become informants included Jose Reyes on December 14, 2011; Frank Aquino on August 22, 2012; Martin Delozier and Terrance Watson on October 12, 2012; Bryan Madera on April 8, 2013 and Anthony Jones on June 5, 2013 and Manuel Lugo on June 14, 2013, Omar Santiago June 10, 2014 and John Young on July 25, 2014 and Joandy

Castillo on August 4, 2014, as well as hundreds of other innocent persons know to the defendants by virtue of the dismissal of all charges against such persons, for, amongst other reasons, a lack of evidence, and complaints, claims and actions brought against said officers, and upon the CITY OF NEW YORK's own tabulations and investigations.

33. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority upon the fabrication of evidence or pretext, and utilizing unreasonable threats and attempted coercion.

34. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

35. The herein above described actions and omissions, engaged in under the color of law by the named defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified

confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

36. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

37. That as a result of the foregoing, the plaintiff DAMASO REYES was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF DAMASO REYES

38. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 38 as though more fully set forth herein.

39. That on August 3, 2017, and pursuant to the Order of Justice Mitchell J. Danziger of the Bronx County Supreme Court under Index No. 26271/17, Plaintiff caused a Notice of Claim, sworn to by or on behalf of the then Claimant, to be presented to the Defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the Defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the Claimant and Claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least

thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based.

40. That Plaintiff DAMASO REYES did appear and give testimony pursuant to General Municipal Law §50-h on November 14, 2017 pursuant to the Notice thereof of by Defendant CITY OF NEW YORK.

41. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

42. That on or about November 5, 2016 at approximately 4:00 P.M., commencing at or near the southwest corner of Prospect Avenue and Garden Street and continuing at or near 761 East 182nd Street, Bronx, New York, the plaintiff DAMASO REYES was improperly arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine DAMASO REYES.

43. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

44. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification or without other privilege.
45. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
46. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact or without other privilege, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock, emotional distress and physical consequences.
47. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
48. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
49. That as a result of the foregoing, the Plaintiff DAMASO REYES was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF DAMASO REYES

50. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 49 as though more fully set forth herein.

51. That the defendants, their agents, servants and/or employees prosecuted a criminal action against the Plaintiff without any basis in law or fact.

52. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the Plaintiff due to racism and prejudice and without any basis in law or fact.

53. That the defendants P.O. WILBERT HERNANDEZ, UNDERCOVER POLICE OFFICERS #1 and #2 and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action and testified against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause.

54. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

55. That all criminal charges brought against plaintiff, which were brought under docket number 2016BX048573 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of November 5, 2016, were dismissed by Hon. Marsha Michael, a Judge of said Court, on May 10, 2017.

56. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

57. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured.

58. The Plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately one hundred eighty six days.

59. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

60. That as a result of the foregoing, the Plaintiff DAMASO REYES was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF DAMASO REYES

61. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 60 as though more fully set forth herein.

62. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

63. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrests of individuals, and in the use of illegal coercion and threats.

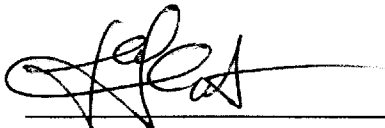
64. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff DAMASO REYES was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from

attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

65. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third and Fourth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
January 27, 2018


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
DAMASO REYES

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-020

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Wilbert Hernandez, Shield No. 4925 and Undercover Police Officers # 1 and #2
NARCBBX, 1 Police Plaza, NY NY 10038 - Room 1310

PLAINTIFF'S VERIFICATION

DAMASO REYES affirms the following to be true under the penalties of perjury:

I am the Plaintiff in the within action and have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


DAMASO REYES

Sworn before me this
29 day of JANUARY, 2018


Notary Public

JONATHAN LOUIS GLEIT
Notary Public, State of NY
No. 31-4979332
Qualified in Westchester County
Commission Expires March 25, 2019